



Uganda Act 1964

1964 CHAPTER 20

An Act to make provision as to the operation of the law in relation to Uganda as a Commonwealth Country not within Her Majesty's dominions. [25th March 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation of
existing law.

1.—(1) Subject to this Act, all law which whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, was in force on 9th October 1963 (being the date on which Uganda ceased to be part of Her Majesty's dominions), or, having been passed or made before that day, comes or has come into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, have the same operation in relation to Uganda, and persons and things belonging to or connected with Uganda, as it would have apart from this subsection if Uganda had not ceased to be part of Her Majesty's dominions.

(2) This section applies to law of or of any part of the United Kingdom, the Channel Islands and the Isle of Man and, in relation only to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby any such enactment applies in relation to Uganda, to law of any other country or territory to which that enactment or Order extends.

(3) This section shall be deemed to have had effect from 9th October 1963.

2.—(1) Her Majesty may by Order in Council make such adaptations in any Act of Parliament passed before 9th October 1963 as appear to Her Majesty necessary or expedient in consequence of Uganda having ceased to form part of Her Majesty's dominions. Power to make consequential adaptations.

(2) Any Order in Council made under subsection (1) of this section, and any Order in Council or other instrument made under any other enactment which varies or revokes a previous Order in Council or instrument in consequence of Uganda having ceased to form part of Her Majesty's dominions, may be made so as to have effect from 9th October 1963.

(3) Any Order in Council under subsection (1) of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament, and may be varied or revoked by a subsequent Order in Council.

3.—(1) Her Majesty may by Order in Council confer on the Judicial Committee of the Privy Council such jurisdiction in respect of appeals to Her Majesty in Council from the Court of Appeal for Eastern Africa on appeal from a court or judge in Uganda, being appeals which were pending immediately before 9th October 1963 and in which the records had been registered in the Office of the Privy Council before that day, as appears to Her to be appropriate for giving effect to any arrangements between Her Majesty's Government in the United Kingdom and the Government of Uganda for any such appeals to be continued before and disposed of by that Committee. Appeals from Uganda.

(2) An Order in Council under this section may determine the practice and procedure to be followed on any appeal in which the said Committee have jurisdiction under this section, and in particular may provide for the form of any report or recommendation to be made by that Committee in the exercise of that jurisdiction, and for its transmission to such authority in Uganda as may be specified in the Order, and may contain such other incidental and supplemental provisions as appear to Her Majesty to be desirable.

(3) An Order in Council under this section may be made so as to have effect from 9th October 1963, and may be varied or revoked by a subsequent Order in Council.

(4) Except so far as otherwise provided by an Order in Council under this section, and subject to such modifications as may be so provided, the Judicial Committee Act 1833 shall apply in relation to appeals in which the Judicial Committee of the Privy Council have jurisdiction under this section as it applied before 9th October 1963 in relation to appeals to Her Majesty in Council from Uganda. 3 & 4 Will. 4. c. 41.

(5) Except as provided by an Order in Council under this section or by the law of Uganda, no appeal from Uganda shall be entertained by the Judicial Committee of the Privy Council.

Short title.

4. This Act may be cited as the Uganda Act 1964.